11B 8/12

CM-110

ATTORNEY OR PARTY WITHOUT ATTORNEY	STATE BAR NUMBER:	FOR COURT USE ONLY
NAME: Brendan Ngwa Nforbi		
FIRM NAME:		
STREET ADDRESS: 1455 Cat Tail Drive		
CITY: Stockton	STATE: CA ZIP CODE: 95204	FILED SUPERIOR COURT SAN JOAQUIN
TELEPHONE NO.: (209) 801-4442	FAX NO.:	2026 JUL 27 P 1:54
EMAIL ADDRESS: bnn.cdl@gmail.com		STEPHANIE BORREL, CLERK
ATTORNEY FOR (name): In Propria Persona		BY: DEPUTY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Joaquin		
STREET ADDRESS: 180 East Weber Avenue		
MAILING ADDRESS: 180 East Weber Avenue		
CITY AND ZIP CODE: Stockton, CA 95202		
BRANCH NAME: Stockton Courthouse		
PLAINTIFF/PETITIONER: Brendan Ngwa Nforbi		
DEFENDANT/RESPONDENT: Diamond Truck Sales, Inc.; Alpine Truck Sales, Inc.		

CASE MANAGEMENT STATEMENT

(Check one): [x] **UNLIMITED CASE** (Amount demanded exceeds $35,000) [ ] **LIMITED CASE** (Amount demanded is $35,000 or less)

CASE NUMBER: STK-CV-UF-2026-0001094

A **CASE MANAGEMENT CONFERENCE** is scheduled as follows:

Date: 08/12/2026 Time: 8:30 AM Dept.: 11B Div.: Room:

Address of court *(if different from the address above):*

[x] **Notice of Intent to Appear by Telephone, by *(name):*** Brendan Ngwa Nforbi

INSTRUCTIONS: All applicable boxes must be checked, and the specified information must be provided.

1. **Party or parties** *(answer one):*
   a. [x] This statement is submitted by party *(name):* Brendan Ngwa Nforbi
   b. [ ] This statement is submitted **jointly** by parties *(names):*
2. **Complaint and cross-complaint** *(to be answered by plaintiffs and cross-complainants only)*
   a. The complaint was filed on *(date):* 02/13/2026
   b. [ ] The cross-complaint, if any, was filed on *(date):*
3. **Service** *(to be answered by plaintiffs and cross-complainants only)*
   a. [ ] All parties named in the complaint and cross-complaint have been served, have appeared, or have been dismissed.
   b. [x] The following parties named in the complaint or cross-complaint
      (1) [ ] have not been served *(specify names and explain why not):*
      (2) [x] have been served but have not appeared and have not been dismissed *(specify names):* Alpine Truck Sales, Inc. - personally served 07/01/2026; 30-day response period expires 07/31/2026; has not yet ap
      (3) [x] have had a default entered against them *(specify names):* Diamond Truck Sales, Inc. - served 05/12/2026; default entered.
   c. [ ] The following additional parties may be added *(specify names, nature of involvement in case, and date by which they may be served):*
4. **Description of case**
   a. Type of case in [x] complaint [ ] cross-complaint *(Describe, including causes of action):*
   Fraudulent Concealment; Intentional Misrepresentation; Negligent Misrepresentation; Breach of Contract; Breach of Implied Warranty of Merchantability (Com. Code 2314); UCL (Bus. & Prof. Code 17200); Rescission & Restitution; Declaratory Relief

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4. b. Provide a brief statement of the case, including any damages *(if personal injury damages are sought, specify the injury and damages claimed, including medical expenses to date [indicate source and amount], estimated future medical expenses, lost earnings to date, and estimated future lost earnings; if equitable relief is sought, describe the nature of the relief):*
Plaintiff purchased a 2014 Volvo VNL diesel semi-truck from Diamond for $27,092.75. Diamond knowingly concealed a material

[x] *(If more space is needed, check this box and attach a page designated as Attachment 4b.)*

5. **Jury or nonjury trial**
The party or parties request [x] a jury trial [ ] a nonjury trial. *(If more than one party, provide the name of each party requesting a jury trial):*
Brendan Ngwa Nforbi

6. **Trial date**
a. [ ] The trial has been set for *(date):*
b. [x] No trial date has been set. This case will be ready for trial within 12 months of the date of the filing of the complaint *(if not, explain):*
Default entered against Diamond; prove-up anticipated at or after this CMC. Alpine response deadline 07/31/2026.
c. Dates on which parties or attorneys will not be available for trial *(specify dates and explain reasons for unavailability):*

7. **Estimated length of trial**
The party or parties estimate that the trial will take *(check one)*
a. [x] days *(specify number):* 1
b. [ ] hours (short causes) *(specify):*

8. **Trial representation** *(to be answered for each party)*
The party or parties will be represented at trial [x] by the attorney or party listed in the caption [ ] by the following:
a. Attorney: Brendan Ngwa Nforbi. In Pro Per
b. Firm:
c. Address: 1455 Cat Tail Drive. Stockton. CA 95204
d. Telephone number: (209) 801-4442
e. Email address: bnn.cdl@gmail.com
f. Fax number:
g. Party represented: Brendan Ngwa Nforbi
[ ] Additional representation is described in Attachment 8.

9. **Preference**
[ ] This case is entitled to preference *(specify code section):*

10. **Alternative dispute resolution (ADR)**
a. **ADR information package.** Please note that different ADR processes are available in different courts and communities; read the ADR information package provided by the court under rule 3.221 of the California Rules of Court for information about the processes available through the court and community programs in this case.
(1) For parties represented by counsel: Counsel [ ] has [ ] has not provided the ADR information package identified in rule 3.221 to the client and reviewed ADR options with the client.
(2) For self-represented parties: Party [x] has [ ] has not reviewed the ADR information package identified in rule 3.221.
b. **Referral to judicial arbitration or civil action mediation** (if available).
(1) [ ] This matter is subject to mandatory judicial arbitration under Code of Civil Procedure section 1141.11 or to civil action mediation under Code of Civil Procedure section 1775.3 because the amount in controversy does not exceed the statutory limit.
(2) [ ] Plaintiff elects to refer this case to judicial arbitration and agrees to limit recovery to the amount specified in Code of Civil Procedure section 1141.11.
(3) [x] This case is exempt from judicial arbitration under rule 3.811 of the California Rules of Court or from civil action mediation under Code of Civil Procedure section 1775 et seq. *(specify exemption):*
Both defendants are in default or have not appeared; no opposing party available for ADR.

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10. c. In the table below, indicate the ADR process or processes that the party or parties are willing to participate in, have agreed to participate in, or have already participated in *(check all that apply and provide the specified information):*

	The party or parties completing this form **are willing** to participate in the following ADR processes *(check all that apply):*	If the party or parties completing this form in the case **have agreed** to participate in or have already completed an ADR process or processes, indicate the status of the processes *(attach a copy of the parties' ADR stipulation):*
(1) Mediation	☐	☐ Mediation session not yet scheduled ☐ Mediation session scheduled for *(date):* ☐ Agreed to complete mediation by *(date):* ☐ Mediation completed on *(date):*
(2) Settlement conference	☐	☐ Settlement conference not yet scheduled ☐ Settlement conference scheduled for *(date):* ☐ Agreed to complete settlement conference by *(date):* ☐ Settlement conference completed on *(date):*
(3) Neutral evaluation	☐	☐ Neutral evaluation not yet scheduled ☐ Neutral evaluation scheduled for *(date):* ☐ Agreed to complete neutral evaluation by *(date):* ☐ Neutral evaluation completed on *(date):*
(4) Nonbinding judicial arbitration	☐	☐ Judicial arbitration not yet scheduled ☐ Judicial arbitration scheduled for *(date):* ☐ Agreed to complete judicial arbitration by *(date):* ☐ Judicial arbitration completed on *(date):*
(5) Binding private arbitration	☐	☐ Private arbitration not yet scheduled ☐ Private arbitration scheduled for *(date):* ☐ Agreed to complete private arbitration by *(date):* ☐ Private arbitration completed on *(date):*
(6) Other *(specify)*:	☐	☐ ADR session not yet scheduled ☐ ADR session scheduled for *(date):* ☐ Agreed to complete ADR session by *(date):* ☐ ADR completed on *(date):*

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11. **Insurance**

a. ☐ Insurance carrier, if any, for party filing this statement *(name):*

b. Reservation of rights: ☐ Yes ☐ No

c. ☐ Coverage issues will significantly affect resolution of this case *(explain):*

12. **Jurisdiction**

Indicate any matters that may affect the court's jurisdiction or processing of this case and describe the status.

☐ Bankruptcy ☐ Other *(specify):*

Status:

13. **Related cases, consolidation, and coordination**

a. ☐ There are companion, underlying, or related cases.

(1) Name of case:

(2) Name of court:

(3) Case number:

(4) Status:

☐ Additional cases are described in Attachment 13a.

b. ☐ A motion to ☐ consolidate ☐ coordinate will be filed by *(name party):*

14. **Bifurcation**

☐ The party or parties intend to file a motion for an order bifurcating, severing, or coordinating the following issues or causes of action *(specify moving party, type of motion, and reasons):*

15. **Other motions**

☒ The party or parties expect to file the following motions before trial *(specify moving party, type of motion, and issues):*
Plaintiff will submit default judgment prove-up package against Diamond Truck Sales, Inc. pursuant to CCP 585 and CRC 3.1, and against Alpine Truck Sales, Inc. pursuant to CCP 585 and CRC 3.1

16. **Discovery**

a. ☒ The party or parties have completed all discovery.

b. ☐ The following discovery will be completed by the date specified *(describe all anticipated discovery):*

Party	Description	Date

c. ☐ The following discovery issues, including issues regarding the discovery of electronically stored information, are anticipated *(specify):*

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17. **Economic litigation**

a. ☐ This is a limited civil case (i.e., the amount demanded is $35,000 or less) and the economic litigation procedures in Code of Civil Procedure sections 90-98 will apply to this case.

b. ☐ This is a limited civil case and a motion to withdraw the case from the economic litigation procedures or for additional discovery will be filed *(if checked, explain specifically why economic litigation procedures relating to discovery or trial should not apply to this case):*

18. **Other issues**

☒ The party or parties request that the following additional matters be considered or determined at the case management conference *(specify):*
Plaintiff requests the Court conduct a default prove-up hearing against Diamond Truck Sales, Inc. at or in connection with this

19. **Meet and confer**

a. ☒ The party or parties have met and conferred with all parties on all subjects required by rule 3.724 of the California Rules of Court *(if not, explain):*
Neither defendant has appeared; meet and confer is not applicable.

b. ☐ After meeting and conferring as required by rule 3.724 of the California Rules of Court, the parties agree on the following *(specify):*

20. Total number of pages attached *(if any):* 1

I am completely familiar with this case and will be fully prepared to discuss the status of discovery and alternative dispute resolution, as well as other issues raised by this statement, and will possess the authority to enter into stipulations on these issues at the time of the case management conference, including the written authority of the party where required.

Date: 07/20/2026

Brendan Ngwa Nforbi
(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY)

(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY)

☐ Additional signatures are attached.

For your protection and privacy, please press the Clear This Form button after you have printed the form. Print this form Save this form Clear this form

ATTACHMENT 4b

Brendan Ngwa Nforbi v. Diamond Truck Sales, Inc.; Alpine Truck Sales, Inc.
Case No.: STK-CV-UF-2026-0001094

Brief Statement of the Case (CM-110, Item 4b):

On or about April 4, 2023, Plaintiff Brendan Ngwa Nforbi purchased a 2014 Volvo VNL diesel semi-truck, VIN 4V4NC9EH6EN142206, from Defendant Diamond Truck Sales, Inc. for a total price of $27,092.75, including a deposit of $12,345.10. Diamond knowingly concealed a material defect in the truck's Diesel Exhaust Fluid (DEF) and Selective Catalytic Reduction (SCR) emissions systems, rendering the truck non-compliant with California emissions law and unfit for the lawful commercial highway operation for which it was purchased.

Shortly after purchase, the truck experienced engine derate (limp mode), emitted excessive black smoke, and lost the ability to exceed approximately 35 mph, rendering it commercially useless. The defect was pre-existing and known to Diamond through the prior owner's disclosure.

Alpine Truck Sales, Inc. is sued as Diamond's successor in interest, mere continuation, de facto merger, alter ego, and/or as a participant in a fraudulent transfer under the Uniform Voidable Transactions Act (Civ. Code 3439 et seq.). Diamond rebranded to Alpine during the pendency of this action, operating from the same locations with the same Osmani family ownership.

Damages sought (per Declaration in Support of Default Judgment):

Documented out-of-pocket losses:	
Deposit paid (Retail Buyer's Order):	$12,345.10
GAP Addendum enrollment:	$1,895.00
CA DMV fees (billed; outstanding; penalties accruing):	$3,442.00
Brannon Tire (emergency tire/road service):	$1,197.34
Mobile Will's Truck/Auto Repair Shop:	$740.00
Golden Empire Towing, Inc.:	$562.50
Western Truck Center (lamp/parts):	$36.71
Subtotal documented:	$20,218.65
Additional out-of-pocket (sworn testimony; no receipt):	
Commercial Towing (CVC 22852 storage release):	$750.00
Almaraz Diesel (DEF/SCR diagnostic and repair):	$5,000.00
Subtotal undocumented:	$5,750.00
Lost commercial income (18 wks x $1,300/wk, conservative):	$23,400.00
Prejudgment interest (Civ. Code 3287(a), 7%, ~3.04 yrs):	$4,302.55
SUBTOTAL COMPENSATORY:	$53,671.20
Punitive damages (Civ. Code 3294):	$25,000.00
Costs of suit (per MC-010):	per Memorandum
TOTAL MONETARY JUDGMENT REQUESTED:	not less than $78,671.20 plus costs

Equitable relief sought: Rescission of the purchase transaction pursuant to Civil Code sections 1689 and 1691; restitution of all monies paid; declaratory relief regarding the enforceability of sale document provisions and Alpine's liability for Diamond's obligations; injunctive relief under Bus. & Prof. Code 17200.